



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8691 (EXTENSION)
FOURTH REVISION February 13, 1986
CORRECTED COPY

MAR 31 1989

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8691 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to February 28, 1991. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.

A. Suzanne Neegsebeth
Allan I. Roberts
Director
Office of Hazardous Materials
Transportation

MAR 31 1989

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Aluminum Company of America (ALCOA)
Pittsburgh, PA

February 8, 1989



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DOT-E 8691
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1. Aluminum Company of America, Pittsburgh, Pennsylvania, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of aluminum chloride contaminated with phosgene for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of packagings containing aluminum chloride contaminated with phosgene, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status as a party to this exemption:

Witco Chemical Corp., Pearsall Division, New York, NY - PTE-1

2. BASIS. This exemption is based on an applications of the Aluminum Company of America dated May 31, 1985, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

Witco Chemical Corp., Pearsall Division's application dated April 3, 1985.

3. HAZARDOUS MATERIALS (Descriptor and class). Aluminum chloride contaminated with a small amount of phosgene; classed as a corrosive solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Corrosive solid, n.o.s.

5. REGULATION AFFECTED. 49 CFR 173.333, 174.63(b).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is as required in 49 CFR 173.245b(a)(1), (4), (8), (9) and (10); also non-DOT specification stainless steel portable tanks; and semi-bulk bags of 40 cubic foot capacity, manufactured by Flexbin Corporation (formerly Krafcor Corporation) constructed in compliance with all of the specifications in the application. The semi-bulk bags must also be capable of passing all of the tests (e.g. drop and drag) described in the application.

8. SPECIAL PROVISIONS.

a. Shipments made in packagings prescribed in 49 CFR 173.245b (a)(4), (a)(8) and the semi-bulk bags must be made in trucks only via motor carrier. The semi-bulk bags must be shipped in closed trucks. Further, all packages except those prescribed in §173.245b(a)(1) must contain an appropriate amount of activated carbon calculated in accordance with Attachment 4 to the October 26, 1981 application.

b. Packages shipped under the provisions of this exemption are required to bear the CORROSIVE label only.

c. Each portable tank and semi-bulk bag must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 8691." Each cargo tank or hopper-type motor vehicle must be marked in this manner on the right side near the front.

d. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption; and aboard each motor vehicle used to transport other than break-bulk shipments.

e. Portable tanks may not be transported in trailer on flatcar (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration (FRA). Portable tanks may be transported in container-on-flatcar (COFC) service only under the following conditions:

1. Portable tanks must be equipped to be securely attached to a railcar equipped with an ISO standard COFC basic pedestal system designed for container support and securement;

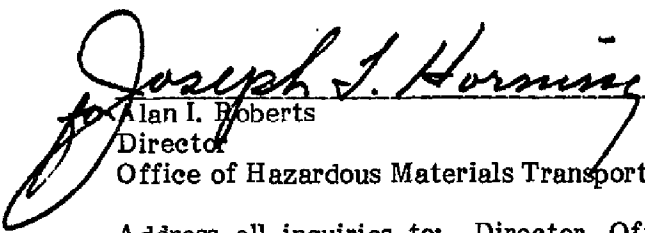
2. Each railcar used to transport portable tanks must be equipped with a cushioning system that meets the requirements of the Association of American Railroads Specification M-952-82; and

3. Shipments made under this exemption must be in accordance with 49 CFR 174.84.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. April 30, 1987.

Issued at Washington, D.C.


Alan I. Roberts
Director

Office of Hazardous Materials Transportation

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA, USCG.